

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #04	CCRB Case #: 201502244	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Friday, 02/06/2015 2:05 PM, Saturday, 02/28/2015 12:00 AM, Thursday, 03/26/2015 12:00 AM	Location of Incident: 14th Avenue and 40th Street; 14th Avenue and 36th Street	18 Mo. SOL 8/6/2016	Precinct: 66
Date/Time CV Reported Thu, 03/26/2015 4:40 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/26/2015 4:40 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Garcia	00776	930200	066 PCT
2. POM Tony Yung	30736	931465	066 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Garcia	Discourtesy: On February 6, 2015, at 14th Avenue and 40th Street in Brooklyn, and on March 26, 2015, at 14th Avenue and 36th Street in Brooklyn, PO Robert Garcia acted rudely toward § 87(2)(b)	A . Unsubstantiated
B . POM Tony Yung	Off. Language: On February 6, 2015, at 14th Avenue and 40th Street in Brooklyn, PO Tony Yung made remarks to § 87(2)(b) based upon religion.	B . Unsubstantiated

Case Summary

On March 26, 2015, § 87(2)(b) filed this complaint with the CCRB by phone (Encl. B1).

On February 6, 2015, at approximately 2:05 p.m., § 87(2)(b) drove past a marked police vehicle near the intersection of 14th Avenue and 37th Street in Brooklyn. § 87(2)(b) was playing loud music in his vehicle. He was pulled over at the intersection of 14th Avenue and 40th Street immediately after passing the police vehicle. PO Robert Garcia and PO Tony Yung exited the police vehicle and approached § 87(2)(b) vehicle. PO Garcia told § 87(2)(b) that he pulled him over for having tinted windows on his car. § 87(2)(b) handed PO Garcia two PBA cards. PO Garcia examined the cards then flung them back into the vehicle, past § 87(2)(b) face and onto the front passenger's seat, saying that the cards were expired (**Allegation A**). PO Garcia then said, "When you drive through a police car, you're supposed to lower your music, not listen to some punk music, right?" PO Yung added, "Yeah, punk Jewish music (**Allegation B**)."
§ 87(2)(b) was then summonsed for tinted windows and the incident came to an end.

On March 26, 2015, at approximately 3:40 p.m., § 87(2)(b) was driving the same vehicle, and was pulled over by a marked police vehicle at the intersection of 14th Avenue and 36th Street in Brooklyn. PO Garcia and PO Yung exited the police vehicle and approached § 87(2)(b) car. PO Garcia asked § 87(2)(b) for his license and registration, which he provided, along with two new PBA cards. PO Garcia looked at the backs of both cards, and tossed them both back at § 87(2)(b) (subsumed within **Allegation A**). One card hit § 87(2)(b) cheek, and one landed on the floor near his feet. PO Garcia returned to his vehicle, and wrote § 87(2)(b) two summonses for tinted windows, as § 87(2)(b) had still not removed the tint. § 87(2)(b) received the two summonses, and had no further interaction with the two officers.

Mediation, Civil, and Criminal Histories

§ 87(2)(b) rejected mediation. § 87(2)(b)
A notice of claim request was submitted to the Comptroller's office on April 28, 2015. It will be added to the case file upon receipt.

Civilian and Officer CCRB Histories

This is § 87(2)(b) first complaint filed at the CCRB (Encl. A1). PO Garcia has been a member of service for 12 years. § 87(2)(g)
In CCRB case number 201200310, a discourtesy-word allegation was substantiated. The NYPD ultimately issued a Command Discipline – B (Encl. A2). PO Yung has been a member of service for 12 years. This is the first allegation made against him (Encl. A3).

Potential Issues

§ 87(2)(b) was interviewed over the phone, as he was going to be out of the country for two weeks immediately after he filed the complaint. A verification form was sent to § 87(2)(b) following his interview, and will be added to the case file upon its receipt.

Findings and Recommendations

Allegation A –Abuse of Authority: On February 6, 2015, at 14th Avenue and 40th Street in Brooklyn, and on March 26, 2015, at 14th Avenue and 36th Street in Brooklyn, PO Robert Garcia acted rudely toward § 87(2)(b)

It is undisputed that PO Garcia pulled § 87(2)(b) over for having tinted windows on February 6, 2015, and on March 26, 2015. It is also undisputed that PO Garcia approached § 87(2)(b)'s vehicle, in both instances, and told him why he had been pulled over. § 87(2)(g)

In § 87(2)(b) statement, he claimed that, in both incidents, after he handed PO Garcia the PBA cards, PO Garcia threw them back at § 87(2)(b) (Encl. B4-5). PO Garcia and PO Yung both denied that PO Garcia threw the cards, or any other objects, back at § 87(2)(b) during either incident (Encl. C12-13 and C23-24, respectively).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B—Offensive Language: On February 6, 2015, at 14th Avenue and 40th Street in Brooklyn, PO Tony Yung made remarks to § 87(2)(b) based upon religion.

It is undisputed that § 87(2)(b) was playing very loud, Jewish music when he drove past PO Yung and PO Garcia on February 6, 2015. § 87(2)(g)

§ 87(2)(b) alleged that PO Yung referred to § 87(2)(b) music as “Punk Jewish music.” PO Yung denied making this statement, as well as commenting on § 87(2)(b) music or referencing his religion. PO Garcia corroborated PO Yung’s claim that he did not utter the alleged remark.

§ 87(2)(g)

. Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date